

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

----- X
CHRISTINA GAVIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
Police Officer ORKHAN MAMEDOV (Shield No. 1393),
in his individual capacity,

Defendants.
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AMENDED COMPLAINT

Index No. 521371/2020

JURY TRIAL DEMANDED

Plaintiff CHRISTINA GAVIN, by and through her attorney, Joshua S. Moskovitz, Esq.,
alleges as follows:

JURISDICTION

1. This action is based on violations of plaintiff's rights under the New York State Constitution, common law, and statutes, as well as 42 U.S.C. § 1983 for violations of Plaintiff's federal constitutional rights.

2. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

3. Venue is proper in Kings County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and Kings County is where the events giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of her claims for which jury trial is legally available.

THE PARTIES

5. Plaintiff CHRISTINA GAVIN is a citizen of the United States and of the State of New Jersey.

6. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York.

7. The City is authorized by law to maintain a police department and does maintain the New York City Police Department (hereinafter referred to as “NYPD”). The NYPD acts as the City’s agent and the City assumes the risks incidental to the maintenance of a police department and the employment of police officers.

8. Defendant Police Officer ORKHAN MAMEDOV (Shield No. 1393) was employed at all relevant times by the NYPD and the City and acted under color of law in the course and scope of his duties and authority as an officer, agent, servant, and employee of the NYPD and the City.

9. At all relevant times, Defendant MAMEDOV violated plaintiff’s clearly established rights under the Fourth and Fourteenth Amendments to the United States Constitution and Article 1 §§ 1, 11, and 12 of the New York State Constitution, of which a reasonable law enforcement officer in his respective circumstances would have known were violations of plaintiff’s rights.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

10. Plaintiff served a Notice of Claim upon the City by electronic means, as prescribed by the Office of the New York City Comptroller, within ninety days of the accrual of Plaintiff’s claims.

11. Plaintiff received confirmation on October 15, 2019, that her Notice of Claim was received by the New York City Comptroller's Office and that it was assigned Claim No. 2019PI027303.

12. On December 17, 2019, Defendant City sent notice of an examination pursuant to New York General Municipal Law § 50-h for February 12, 2020.

13. On January 22, 2020, Plaintiff's attorney requested an adjournment of the February 12, 2020 examination.

14. Counsel for Defendant City refused to reschedule the GML § 50-h examination.

15. On February 21, 2020 Plaintiff's counsel sent correspondence to the New York City Comptroller's Office asking it to reschedule the GML § 50-h examination.

16. Defendant City did not attempt to reschedule the GML § 50-h until September 30, 2020, when counsel for the City sent a notice adjourning the GML § 50-h examination for November 25, 2020.

17. GML § 50-h(5) required the City to conduct the examination "within ninety days of service of the demand," which was March 16, 2020.¹ Thus, the City failed to comply with GML § 50-h(5).

18. More than thirty days have elapsed since the Notice of Claim was served on the New York City Comptroller's Office, and the City has neglected or refused to adjust or pay said claims.

19. This action is filed within one year and ninety days of the events giving rise to Plaintiff's claims, as tolled by the Executive Orders of the Governor of New York due to COVID. *See* Exec. Order 202.08 *et seq.*

¹ Governor Cuomo's Executive Order 202.08, which tolled "any specific time limit for the commencement, filing, or service of any legal action, notice, motion, or other process or proceeding, as prescribed by the procedural laws of the state," was not issued until March 20, 2020.

STATEMENT OF FACTS

20. The evening of July 25, 2019, Plaintiff Christina Gavin was present outside of 240 Lott Avenue in Brooklyn.

21. Plaintiff was committing no crime, was not threatening anyone, and was not acting disorderly.

22. An NYPD police officer assaulted Plaintiff.

23. Upon information and belief that officer was Defendant Police Officer ORKHAN MAMEDOV (Shield No. 1393).

24. Defendant MAMEDOV threw Plaintiff to the ground, causing her substantial physical pain and other injuries.

25. Defendant MAMEDOV and/or other NYPD police officers handcuffed Plaintiff and placed her in a police vehicle.

26. Plaintiff had committed no offense and the officers lacked any lawful basis to arrest Plaintiff.

27. Plaintiff was transported to the 73rd Precinct.

28. Plaintiff was detained against her will at the 73rd Precinct.

29. Plaintiff was taken to the hospital because of the physical injuries she suffered when she was assaulted by the officer.

30. Plaintiff was later returned to the 73rd Precinct before she was taken to Central Booking, where she remained confined against her will until she was released on her own recognizance.

31. Plaintiff was charged with an offense based on false allegations made by Defendant MAMEDOV.

32. Plaintiff was required to return to court to fight the false criminal charges against her.

33. The criminal charges brought against plaintiff were eventually dismissed.

34. As a direct result of Defendant MAMEDOV's conduct, plaintiff suffered the violation of her federal and state constitutional rights, as well as other rights protected by New York statutes and common law.

35. Among other things, plaintiff suffered physical pain and suffering, a loss of her liberty, emotional pain and suffering, distress, humiliation, fear, and embarrassment.

FIRST CAUSE OF ACTION
New York State Constitutional Violations

36. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

37. Defendants subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 §§ 1, 11, and 12 of the New York State Constitution, including, without limitation, the rights and privileges secured to all citizens of the State of New York, the right to equal protection of the laws, the right to be free from arrest without probable cause, and the right to be free from unreasonable searches and seizures.

38. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

39. Defendant City is vicariously liable for the conduct of the individual defendants as set forth herein.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983 – Federal Constitutional Violations
(Against Defendant MAMEDOV)

40. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

41. In committing the acts and omissions complained of herein, Defendant MAMEDOV acted under color of state law, individually and in concert, to deprive plaintiff of her constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to (a) the right to be free from unreasonable searches and seizures, (b) the right to be free from arrest without probable cause, (c) the right to be free from deprivation of liberty without due process of law, (d) the right to be free from detention without probable cause, and (e) e right to equal protection of the laws.

42. As a direct and proximate result of Defendant MAMEDOV's deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

43. The unlawful conduct of Defendant MAMEDOV was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

THIRD CAUSE OF ACTION
False Imprisonment

44. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

45. Defendant MAMEDOV, through the foregoing acts, caused plaintiff to be wrongfully detained without good faith, probable cause, or other legal justification.

46. Plaintiff was aware of this detention and did not consent to it.

47. Defendant MAMEDOV committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and is therefore liable for punitive damages.

48. The City is vicariously liable for the conduct of Defendant MAMEDOV.

FOURTH CAUSE OF ACTION

Assault

49. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

50. Defendant MAMEDOV acted with the intent to cause plaintiff to fear for her own physical safety and to fear that violent contact was imminent.

51. Defendant MAMEDOV acted with the intent to harass, annoy, and/or alarm plaintiff.

52. As a result of Defendant MAMEDOV's conduct, plaintiff became apprehensive and feared for her own physical safety and feared that violent contact was imminent.

53. As a direct and proximate result of Defendant MAMEDOV's conduct, plaintiff suffered the injuries and damages set forth above.

54. Defendant MAMEDOV committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and is therefore liable for punitive damages.

55. The City is vicariously liable for the conduct of Defendant MAMEDOV.

FIFTH CAUSE OF ACTION

Negligence

56. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

57. Defendant MAMEDOV owed plaintiff a duty of care, including the duty to exercise due care in the course of his duties as an NYPD officer.

58. Defendant MAMEDOV, by the foregoing acts, negligently or recklessly failed to use due care in the performance of his duties as an NYPD officer in that he failed to perform his

duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances

59. Plaintiff's injuries herein were caused by Defendant MAMEDOV's breach of the duty of care he owed plaintiff.

60. All of these acts were performed without any negligence on the part of plaintiff and were the proximate cause of injuries to plaintiff.

61. The City is vicariously liable for the conduct of Defendant MAMEDOV.

SIXTH CAUSE OF ACTION
Malicious Prosecution

62. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

63. A criminal proceeding was commenced against plaintiff in Kings County Criminal Court.

64. Defendant MAMEDOV initiated the proceeding, even though there was no probable cause that plaintiff had committed a criminal act.

65. Defendant MAMEDOV provided false allegations about plaintiff's conduct to the District Attorney's Office and signed a complaint that included those false allegations.

66. The criminal proceeding was terminated in plaintiff's favor when the charges against her were dismissed.

67. The proceeding was brought with malice, which is shown by the above-stated facts establishing a lack of probable cause.

68. Defendant MAMEDOV committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and is therefore liable for punitive damages.

69. The City is vicariously liable for the conduct of Defendant MAMEDOV.

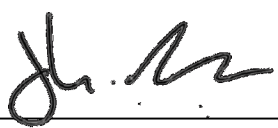
DEMAND FOR RELIEF

WHEREFORE, plaintiff demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from Defendant MAMEDOV to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
January 7, 2021

THE LAW OFFICE OF JOSHUA MOSKOVITZ
14 Wall Street, Suite 1603
New York, New York 10005
(212) 380-7040

By: 

Joshua S. Moskovitz